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DEMURRER

WITH MOTION TO STRIKE

The Court tenders

the following tentative decision in the matter Robert Reed, et al. v.

EQR-Vantage, LP, Los Angeles County Superior Court case number 26STCV15490,

set for hearing on September 11, 2026. EQR-Vantage, LP (Defendant) demurs to the sixth and seventh causes

of action contained within Robert Reed, Vanessa Baris, and William Chadwick's

(collectively, Plaintiffs) complaint. Defendant also moves to strike Plaintiffs'

requests for punitive damages, statutory penalties, and attorney's fees. Defendant's

demurrer is overruled. Its motion to strike is granted in part. Plaintiffs are

granted 20 days' leave to amend.

A. Legal Standard

A demurrer is

sustained where "[t]he pleading does not state facts sufficient to constitute a

cause of action." (Code Civ. Proc., § 430.10, subd. (e).) "A demurrer tests the

legal sufficiency of the factual allegations in a complaint." (Yalung v.

State (2023) 98 Cal.App.5th 71, 80.) In reviewing a complaint's legal

sufficiency, a court will treat the demurrer as admitting all material facts

properly pleaded, but not contentions, deductions or conclusions of law. (Esparza

v. Kaweah Delta Dist. Hospital (2016) 3 Cal.App.5th 547, 552.) It is well

settled that a "demurrer lies only for defects appearing on the face of the

complaint[.]" (Stevens v. Superior Court

(1999) 75 Cal.App.4th 594, 601.) "We not only treat the demurrer as admitting

all material facts properly pleaded, but also give the complaint a reasonable

interpretation, reading it as a whole and its parts in their context." (Quelimane Co. v. Stewart Tit. Guaranty Co.

(1998) 19 Cal.4th 26, 38.) For purposes of ruling on a demurrer, the complaint must be construed liberally by drawing reasonable inferences from the facts pleaded. (Wilner v. Sunset Life Ins. Co. (2000) 78 Cal.App.4th 952, 958.)

When ruling

on a demurrer, a court may only consider the complaint's allegations or matters which may be judicially noticed. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) The Court may not consider any other extrinsic evidence or judge the credibility of the allegations pleaded or the difficulty a plaintiff may have in proving his allegations. (Ion Equipment Corporation v. Nelson (1980) 110 Cal.App.3d 868, 881.) A demurrer is properly sustained only when the complaint, liberally construed, fails to state facts sufficient to constitute any cause of action. (Kramer v. Intuit Inc. (2004) 121 Cal.App.4th 574, 578.)

The Court

may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The Court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the Court. (Id., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Id., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.)

When a

demurrer is sustained or a motion to strike granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

B. Discussion

Defendant demurs to Plaintiffs' sixth

and seventh causes of action on the basis that they have not pled sufficient facts. (Code Civ. Proc., § 430.10, subd. (e).) Defendant also moves to strike Plaintiffs' requests for punitive damages, statutory penalties, and attorney's fees as improper matters. (Id., § 436, subd. (a).) The Court will address each issue in turn.

Plaintiffs have pled sufficient facts to state a cause of action for intentional infliction of emotional distress.

Defendant argues that Plaintiffs have not pled sufficient facts to constitute a cause of action for intentional infliction of emotional distress. A claim for intentional infliction of emotional distress requires a showing of "(1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Huntingdon Life Sciences v. Stop Huntingdon Animal Cruelty USA, Inc. (2005) 129 Cal.App.4th 1228, 1259.) A defendant's conduct is 'outrageous' when it is so 'extreme as to exceed all bounds of that usually tolerated in a civilized community.' [citation] And the defendant's conduct must be 'intended to inflict injury or engaged in with the realization that injury will result.' [citation]." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050–1051.) This conduct must be alleged with specificity to avoid demurrer. (Yau v. Santa Margarita Ford, Inc. (2014) 229 Cal.App.4th 144, 161.) Specifically, Defendant argues that Plaintiffs have not pled sufficient facts demonstrating extreme or outrageous conduct or intent to cause emotional distress.

In *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, the Court of Appeal determined that the tenant plaintiffs had stated a cause of action for intentional infliction of emotional distress based on their allegations that the landlord defendants allowed unsafe conditions to persist despite their knowledge of them. (Id. at pp. 912–913.) Specifically, the defendants' knowing, intentional, and willful failure to correct the defective conditions provided a potential basis for a finding of extreme and outrageous conduct after further factual inquiry. (Id. at p. 922.)

Here, Plaintiffs allege that despite notifying Defendant of defects in the rental property, they endured substandard

and uninhabitable conditions in their unit during their tenancy, including toxic habitability problems which caused harm to their health. (Compl. ¶¶ 23–26.) The defects included “a non-functioning oven, severe cockroach infestation, dilapidated walls, water leaks/ intrusion, faulty plumbing systems, trash overflow, pest infestation, noise disturbances, nuisance and interference with quiet enjoyment, and general dilapidation.” (Id. ¶ 27.) Plaintiffs allege that Defendant failed to abate, correct, or repair these conditions despite being repeatedly notified. (Id. ¶¶ 29, 38.) They further allege that Defendant’s practice of ignoring these conditions and failing to make repairs was extreme and outrageous under the circumstances because they ignored repair requests and forced Plaintiffs to live in inhumane conditions. (Id. ¶¶ 107, 108.) They note that Defendant was in a position of authority yet failed to maintain the property while lying to Plaintiffs about repairs and maintenance. (Ibid.) And conduct is outrageous where a defendant “abuses a relation or position which gives him power to damage the plaintiff’s interest. (McDaniel v. Gile (1991) 230 Cal.App.3d 363, 372.) Indeed, where a landlord’s acts in breach of the implied warranty of habitability are extreme and outrageous enough to result in severe mental distress, such a cause of action is warranted. (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1299.) Thus, despite Defendant’s argument to the contrary, Plaintiffs have pled sufficient facts demonstrating extreme or outrageous conduct.

Plaintiffs further allege that Defendant acted with reckless disregard of the probability that they would suffer emotional distress, “knowing that the Plaintiffs were present and living in the Subject Property that was substandard and had untenable conditions.” (Compl. ¶ 109.) Finally, Plaintiffs allege that they have suffered emotional harm, anguish, depression, fearfulness, and anxiety because of Defendant’s actions. (Id. ¶ 113.) Thus, Plaintiffs have pled facts satisfying each required element of their cause of action for intentional infliction of emotional distress. Accordingly, Defendant’s demurrer is overruled as to the sixth cause of action.

Plaintiffs have pled sufficient facts to state a cause of action for violation of the Los Angeles Tenant Anti-Harassment Ordinance (TAHO).

Defendant argues that Plaintiffs have not pled sufficient facts to constitute a cause of action under the TAHO.

Tenant harassment under that provision is defined as “bad faith conduct directed at a specific tenant or tenants that causes the latter detriment or harm,” with bad faith referring to willful, reckless, or grossly negligent conduct. (LAMC § 45.33.) Harassment includes the following: (1) “[r]educing or eliminating, or threatening to reduce or to eliminate, housing services required by a lease, contract or law”; (2) “[f]ailing to perform and timely complete necessary repairs and maintenance required by Federal, State, County, or local housing, health, or safety laws”; (3) “[t]hreatening or taking action to terminate any tenancy . . . based on facts which the landlord has no reasonable cause to believe to be true”; and (4) “repeated acts or omissions of such significance as to substantially interfere with or disturb the comfort, repose, peace or quiet of a tenant(s) and that cause, are likely to cause, or are committed with the objective to cause a tenant(s) to surrender or waive any rights in relation to such tenancy.” (Id., § 45.33, subds. (1), (2), (7), (17).)

Here, Plaintiffs allege that Defendant met any requests and reminders with retaliatory actions during their tenancy. (Compl. ¶ 122.) They allege that they were ignored despite making efforts to communicate with Defendant about the habitability issues. (Ibid.) They further allege that Defendant deliberately and maliciously directed conduct toward them with the intention of coercing them to vacate the property. (Id. ¶ 124.) Thus, Plaintiffs have pled facts supporting a cause of action under the TAHO through Defendant’s alleged failure to make timely repairs and engaging in conduct meant to cause Plaintiffs to surrender their tenancy. Accordingly, Defendant’s demurrer is overruled as to Plaintiffs’ seventh cause of action as well.

Plaintiffs’ claim for punitive damages is stricken.

Defendant moves to strike Plaintiffs’ prayer for punitive damages and all paragraphs referencing punitive damages in the complaint as irrelevant and improper matters. (Code Civ. Proc., § 436, subd. (a).) A plaintiff may recover punitive damages where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice is defined as conduct intended to injure the plaintiff or despicable conduct by a defendant acting with a willful and conscious disregard of the rights and safety of others. (Id., § 3294, subd. (c)(1).) Oppression means despicable conduct subjecting a person

to cruel and unjust hardship in conscious disregard of their rights. (Id., § 3294, subd. (c)(2).) And fraud refers to intentional misrepresentations or concealment of a material fact known to the defendant. (Id., § 3294, subd. (c)(3).)

When requesting

punitive damages based on claims against an employer arising out of an employee's acts, the plaintiff must make an additional showing that "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Id., § 3294, subd. (b).)

A plaintiff attempting to prove malice

or oppression must offer clear and convincing evidence of despicable conduct. (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal.App.4th 306, 328 (Mock).) This refers to conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Id. at p. 331.) A claim for punitive damages is insufficient where it lacks a factual assertion supporting the conclusion that a party acted with oppression, malice, or fraud. (Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1042.)

Here, Plaintiffs allege that Defendant

engaged in oppressive conduct supporting a punitive damages claim. (Compl. ¶ 46.)

Specifically, Plaintiffs allege that Defendant acted with willful and conscious disregard of Plaintiffs' rights and safety in failing to abate the uninhabitable and toxic conditions despite Plaintiffs' complaints. (Id.

¶¶ 23–29.) This could constitute oppressive conduct and support a claim for punitive damages under section 3294, subdivision (c)(2). However, Plaintiffs fail to plead facts satisfying the additional requirement set out under subdivision (b).

Defendant is a corporation, yet Plaintiffs do not identify any officer, director, or managing agent who had advance knowledge of or ratified the relevant oppressive acts. Rather, Plaintiffs merely allege that all defendants in this action were and are "the agents, employees, partners, joint-venturers, co-conspirators, owners, principals, and employers of the remaining Defendants" and that the

acts and conduct of all defendants were known to, authorized, and ratified by the other defendants. (Id. ¶ 12.) This allegation does not identify an officer, director, or managing agent of Defendant specifically, however. Thus, Plaintiffs have not pled sufficient facts to state a claim for punitive damages against Defendant. Accordingly, Defendant's motion to strike is granted with respect to paragraph 17 in the prayer for relief. Paragraphs 46, 114, 121, and 126 of the complaint still contain allegations relevant to matters other than Plaintiffs' punitive damages request, however, and are thus not properly stricken.

Plaintiffs have pled sufficient facts to support a request for attorney's fees.

Defendant argues that Plaintiffs' request for attorney's fees should be stricken as an improper matter. A plaintiff must demonstrate that a contract provision or a statute allows for an award of attorney's fees for such a request to be maintained. (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.) Here, Plaintiffs allege multiple avenues for the recovery of attorney's fees, including the underlying lease agreement and LAMC section 45.35. (Compl. ¶¶ 59, 119.) Thus, their request for attorney's fees is properly included within the prayer for relief. Accordingly, Defendant's motion to strike is denied with respect to paragraphs 6 and 11 in the prayer.

Plaintiffs have pled sufficient facts to support their requests for statutory penalties.

Defendant argues that Plaintiffs have not pled sufficient facts with respect to their requests for statutory penalties. Plaintiffs seek statutory and civil penalties under LAMC section 45.33 and Civil Code sections 789.3, 1940.2, 1942.4, and 1942.5. LAMC 45.33 allows for civil penalties up to \$10,000 for violations. As discussed above, Plaintiffs have pled sufficient facts to support their cause of action for violation of the TAHO and thus their request for civil penalties under that provision is proper. Civil Code section 789.3 authorizes a penalty of \$100 for each day a landlord is in violation. But Plaintiffs have not pled any violations of this provision; thus, their request for civil penalties under section 789.3 is properly stricken. Civil Code sections 1940.2, 1942.4, and 1942.5 authorize special penalty damages as well. However, Plaintiffs do not allege any violations of sections 1940.2 and 1942.5. Additionally, a violation

of section 1942.4 only occurs if a public officer responsible for the enforcement of housing law notified the defendant landlord of substandard conditions in writing and they were not abated within 35 days. (Civ. Code, § 1942.4, subd. (a).) Plaintiffs have not pled facts supporting a violation of section 1942.4. Thus, civil penalties are not warranted with respect to that section, either. Accordingly, Defendant's motion to strike is granted with respect to paragraphs 7–10 of the prayer for relief and denied with respect to paragraphs 5, 13, 14, and 16.

Conclusion:

Defendant's

demurrer is overruled. Defendant's motion to strike is granted with respect to paragraphs 7–10 and 17 in the prayer for relief only. Plaintiffs' are granted 20 days' leave to amend.